

should govern. It was contended, that to say
 “ that laws do or can govern, is to amuse our-
 “ selves with a form of speech, as when we say
 “ time, or age, or death, does such a thing.
 “ That the government is not in the law, but in
 “ the person whose will gives a being to that law.
 “ That the perfection of monarchy consists in go-
 “ verning by a nobility, weighty enough to keep
 “ the people under, yet not tall enough, in any
 “ particular person, to measure with the prince;
 “ and by a moderate army, kept up under the
 “ notion of guards and garrisons, which may be
 “ sufficient to strangle all seditions in the cradle;
 “ by councils, not such as are co-ordinate with
 “ the prince, but purely of advice and dispatch,
 “ with power only to persuade, not limit, the
 “ prince’s will*.” In such a situation, writers on
 the side of liberty thought themselves obliged to
 consider what was then practicable, not abstractedly
 what was the best: they felt the necessity of
 leaving the monarchical and aristocratical orders
 out of their schemes of government, because all
 the friends of those orders were their enemies, and
 of addressing themselves wholly to the democrati-
 cal party, because they alone were their friends;
 at least there appears no other hypothesis on
 which to account for the crude conceptions of
 Milton and Nedham. The latter, in his preface,
 discovers his apprehensions and feelings, too
 clearly to be mistaken, in these words: “ I be-
 “ lieve none will be offended with this following
 “ discourse, but those that are enemies to public
 “ welfare: let such be offended still; it is not for
 “ their sakes that I publish this ensuing treatise,

* See the political pamphlets of that day, written on the side of monarchy.